NO 1.

BRIEF FACTS

Tumwesigye is a local Industrialist. He wants to register his local brew with a name Tontomera. The registrar has refused to register it on the ground among others that there is already in existence another brew registered under trade mark Tonto, owned by James. James has been doing brisk business selling his brew and as a result Tumwesigye's sales have plunged down resulting in considerable loss of earnings.

ISSUES

1. Whether Tumwesigye has a right to register his Trademark?
2. Whether James can bring an action against infringement on his trademark?
3. Whether there are any remedies available for the parties?

LAW APPLICABLE

1. The Trade Mark Act 2010
2. Case Law

RESOLUTIONS

1. Whether Tumwesigye has a right to register his Trademark?

A Trade Mark is defined by **section 1(1) of the Trade Mark Act 2010** as follows; "trademark means a sign or mark or combination of signs or marks capable of being represented graphically or capable of distinguishing goods or services of one under taking from those of another undertaking. The same section defines the "mark or sign" to include any word, symbol, slogan logo, sound, smell, colour, brand label, name, signature, letter, numerical or any combination of them ".

In **Anglo Fabrics (Bolton) ltd & Another vs. African Queen Ltd &Another Hccm no 00017/2011**, A trademark was defined to mean a word, phrase, symbol, product, feature or any combination or these that distinguishes in commerce the goods or services or its owner from those of others.

Section 8 of Trademarks Act 2010 provides that a Trade Mark relating to goods or services shall be registered in respect of particular goods or classes of goods and any question arising as to the class within which goods or services fall shall be determined by the registrar whose decision shall be final according to section 8 (1) in order for a Trade Mark other than a certification mark.

According to the **Trade Mark Act 2010 part A**, to register a Trade Mark, it shall contain or consist of at least one of the following essential particulars;-

a) The name of the company, individual or firm

b) The signature of the applicant for registration or some predecessor in this business

c) An invented word or invented words

d) Aword or words having no direct reference to the character or quality of the goods and not being according to its ordinary signification of geographical name or surname.

Any other distinctive mark, a name, signature or words other than such as fall within the description in the foregoing paragraphs (a), (b), (c), and (d) shall not be registrable under the provisions of this paragraph except upon evidence of its distinctiveness.

Section 25 of the Trademark Act 2010, stipulates that a trade mark relating to goods shall not be registered in respect of goods or description of goods that is identical with or nearly resembles a trademark belonging to a different owner and already on the register in respect of the same goods , the same description of goods , services or a description of services which are associated with those goods or goods of that description.

In **London overseas trading Co. Ltd Vs Raleigh Cycle Co. Limited (1959) E. A 1012**, the issue of contention was whether the word "Lale" was phonetically identical to the word Raleigh and secondly whether the mark lale" would cause confusion. It was held by Dudley Mckisack that it was clearly the Registrar's duty to consider whether the similarity of sound was such that registration is prohibited by the trade marks ordinance. It was upon the Registrar to find that the mark by being likely to deceive or cause confusion would be disentitled to protection.

In the court, Justice Dudley Micklsack stated 'I have no hesitation what so ever in holding that the word "Lale" will be confused with the word "Raleigh" and that if the word "Lale" were allowed to be registered as a Trade Mark, members of the public would be deceived into purchasing bicycles or parts thereof with which the applicants are connected in the cause of trade when they intended to purchase bicycles or parts thereof with which the opponents are connected in the cause of trade.

In conclusion therefore, Tumwesigye has no right to register his brew with the trademark 'Tontomera' since there is already in existence the trade mark of an identical product which is 'Tonto' and this can be confused with the trademark 'Tontomera' which may confuse and deceive the members of the public according to the discussion above.

2. Whether James can bring an action against infringement on his trademark?

The right of a trade mark owner encompasses two things that is the right to use of the trade mark and the right to exclude others from using the mark. The positive right of use belonging to the trademark owner is recognized in most trade mark laws. **In Anglo Fabrics (Bolton) Ltd & another vs. African Queen Ltd & Another, HCT-00-CC-CS NO 0632/2006** it was stated that a right in trademark is conferred on registration in the register of trademarks of a person as appropriator thereof. 3

The right to use the trade mark is the trade mark owner's right to use his mark in advertising on business papers, documents and so on.
The second general right to exclude others from using the mark follows from the mark's basic function of distinguishing the goods of its owner from those of others, That he must be able to object to the use of confusing or similar marks in order to prevent consumers and the public in general from being misled. This is the rationale of the exclusive right afforded to the trademark owner by registration.
The exclusive rights of the trademark owner can be exercised by means of an infringement action under **section 79 of the Trade mark Act 2010**. The trade mark is infringed if owing to the use of an identical or similar sign for public use and the public being misled.

Consequently, the court has to consider, how the infringer is actually using the trademark and the extent of use of the infringed mark may also be significant.
Section 25(1) of the trade mark Act provides that subject to section 27, a trade mark relating to goods shall not be registered in respect of a goods or description of goods that is identical with or nearly resembles a trade belonging to a different owner and already on the register in respect of;
a. The same goods; or b. The same description of goods.

The above position of the law was emphasized. In the case of **Techno Telecom Ltd vs. Kigalo Invcstments Hccm no00017/2011.**
The applicant in this case was a duly incorporated company in Hong Kong china and

the owner of registered trade mark under the names of Techno, a manufacturer and exporter of various electronics items under class including Mobile phones called techno a registered trademark in Hong Kong. The respondent a Ugandan registered the same trademark. The applicant brought a cause of action seeking the trademark to be removed from the register on grounds of prior registration in the country of origin and non use. The decision was entered in favor of the applicant. The techno trademark was removed from the Uganda trademarks register.

In **Re Lyndon's (1886) 32 Ch.D 109**, Trade mark person J relying on **Re Worthington and co Trademark (1886) 14 Ch. D 108 40 (1989) A.C 83** held that "the question whether a new trademark is so like another is to be calculated by considering whether the new mark is so like to the other one when they are both fairly used; that is, one is likely to be mistaken from the other"

Given the facts, Tumwesigye used a trademark on his products 'Tontomera' which is likely to confuse the public because there is already an existing registered trademark 'Tonto' which is identical with his and therefore he infringed on James' trademark and so James can bring an action against him.

3. Whether there are any remedies available for the parties?

Section 81 of the Trademarks Act 2010 provides for penalties and compensation. It states that; (1). In addition to any punishment imposed by the court in respect of an offence under this Act in an action for infringement, a relief by way of damages, injunctions, account of profits or otherwise, shall be available to the plaintiff as in any other corresponding proceedings in respect of infringements of other proprietary rights.

More so **Section 79(1) of the trademark act 2010** provides that where there has been infringement on a trademark, a person can institute civil proceedings in the court for an injunction to prevent the infringement or to prohibit the continuation of the infringement.

Therefore, James can apply to court for an injunction to stop Tumwesigye from further infringement.

James can also claim for damages to compensate him due to the losses he suffered following James' infringement of his trademark. In the case of **Even Warnink v Townend & Sons(Hull) Ltd [1979]AC 73**, court gave an order for the plaintiff to obtain damages and account of profits from defendants who had infringed a trademark.

James also has a remedy of destruction of the infringing works. In the case of **Weetabix Ltd v Manji Food Industries Ltd [2015] EA 559**, court issued an order to deliver or destroy on oath all infringing multibix within the defendant's possession ,custody or power which would otherwise offend against provisions of the foregoing injunction and disclosure of the names and addresses of all those whom the respondent supplied goods.

NO 2.

BRIEF FACTS

Busingye is a local artist. At one of the concerts, he sang a song entitled "God is Great". Sonko secretly recorded it on his smart phone. He played the song every day at his home. He has gone ahead to reproduce the song on tape and he is selling the tapes. Busingye is contemplating bringing an action against Sonko for infringement of a copyright.

ISSUES

1. Whether there was an infringement of a copyright?
2. Whether there are any remedies available for Busingye?

   Law Applicable
   1. The copyright and neighboring rights Act 2006
   2. Case Law

RESOLUTIONS

1. Whether there was an infringement of a copyright?

According to Halsbury's Laws of England (vol.9) 4th edition Para. 3 at page 10, a copyright is the exclusive right to do and to authorize others to do certain acts in relation to literary, dramatic and musical works, artistic works, sound recordings, films, broadcasts, cable programmes and published editions of works.

According to **section 4(1) of the copyright and neighboring rights Act 2006**, the right of protection to the work is only applicable where the work is original and is reduced in material form.

The word original was defined in the case of **University of London Press Ltd v University Tutorial Press Ltd (1916) 2 ch 601** to mean that it should not demand original or inventive thought, and that the work should not be copied but originate from the author.

Copyright work is further considered original when the author has exercised the right kind of labour, skill, or effort otherwise known as 'intellectual creation' in producing the work. This was discussed in the case of **Ladbroke v William Hill (1964) ALLER 465 at 469**.

Section 9 of the copyright and neighboring rights Act 2006, provides that the author of copyright in a protected work enjoys exclusive rights known as economic rights. These exclusive rights include rights to: copy the work, issue copies of the work to the public, rent or lend the work to the public, perform, show or play the work in public, communicate the work to the public, make an adaptation of the work, or do any of the above acts in relation to adaptation, and authorize others to carry out any of these activities.

It should be noted that the nature of rights granted varies according to the type of work in question.

According to **Section 10 (1) a, b, c, of the copyright and neighboring rights Act 2006**, Creators of works further enjoy moral rights; that is rights held in perpetuity. Unlike the economic rights, moral rights are not assignable to any persons except for purposes of its enforcement.
The moral rights of the creator of work include the rights to:-
claim ownership of that work except where the work is included incidentally or accidentally in reporting current events by means of media or other means;
have the author's name or pseudonym mentioned or acknowledged each time the work is used or is used whenever any of the acts under section 9 on economic rights are done in relation to the work except where it is not practicable to do so; and
object to or seek relief in connection with any distortion, mutilation, alteration or modification of the work.

Section 46 of the copyright and neighboring rights Act 2006, provides for infringement of copyright or neighboring rights. Infringement is deemed to occur where without a valid transfer, license, assignment or other authorization under the

Act, any person deals with the work or performance contrary to the permitted free use and in particular where that person does or causes or permits another person to do the acts listed below;

reproduce, fix, duplicate, extract, imitate or import into Uganda otherwise than for his or her own private use;

distribute in Uganda by way of sale, hire, rental or like manner; or

exhibit to the public for commercial purposes by way of broadcast, public performance or otherwise.

According to the facts at hand, Sonko reproduced Busingye's song on tapes and he is even selling the tapes. This amounts to infringement of a copyright following the provisions of section 46 of the Act discussed above.

In conclusion therefore there was an infringement of Busingye's copyright.

2. Whether there are any remedies available for Busingye?

Important to note is that, in all the intellectual property rights discussed above, for any person to claim infringement upon the intellectual property, she or he must establish a cause of action.

A cause of action implies that you enjoyed a right, which has been violated, and the violation is by the person sued.

Once a cause of action has been established, the person alleging infringement upon his/her intellectual property has civil remedies available to him or her. Civil remedies are provided in section 45 of the Act.

Section 45(1) of copyright and neighboring rights Act 2006 provides that any person whose rights under this Act are in imminent danger of being infringed or are being infringed may institute civil proceedings in the Commercial Court for an injunction to prevent the infringement or to prohibit the continuation of the infringement.

Section 45(4) provides that a person who sustains any damage because of the infringement of his or her rights under this Act may claim damages in respect of loss sustained by him or her as a result of the infringement of the rights against the person responsible for the infringement whether or not that person has been successfully prosecuted.

In conclusion therefore, Busingye can bring an action against Sonko seeking for an injuction and damages as discussed above since Sonko infringed his copyright.

NO 3.

Section 2 of the Industrial Property Act 2014, defines a patent as the title granted to protect an invention. [1]

Section 2 also defines an invention as a new and useful whether producing a physical effect or not or a process or a machine which is not obvious and is capable of being used or applied in trade or industry.

Article 79 of the Constitution of Uganda 1995, provides that parliament shall make laws on any matter for peace, order development and good governance in Uganda.[2] From these provisions, it is shown that an individual could seek protection for his/her invention.

However, the Industrial Property Act 2014 sets out the limitations and exceptions to patentability under **section 8(3) of the Act.** It provides for the works that are not regarded as inventions and thus shall not be excluded from patent protection;

(a) Discoveries, scientific theories and mathematical methods;
(b) Schemes, rules or methods for doing business, performing purely mental acts or playing games;
(c) Diagnostic, therapeutic and surgical methods for the treatment of humans or animals;
(d) Mere presentation of information;
(e) Plants and animals other than micro-organisms, and essentially biological processes for the production of plants or animals other than non-biological and micro-biological processes; and
(f) Pharmaceutical products and test data until 1st January 2016 or such other period as may be granted to Uganda or least developed countries by the council responsible for administering the Agreement on trade related aspects of intellectual property under the World Trade Organization;

[1] Industrial Property Act 2014
[2] The Constitution of the Republic of Uganda 1995

(g) Natural substances, whether purified, synthesized or otherwise isolated from nature, except the processes of isolating those natural substances from their original environment; and
(h) The human body and all its elements in whole or in part.

Section 13 of the Industrial Property Act 2014 , also provides for non-patentable innovations which include plant varieties, inventions contrary to public order, morality, public health and safety, public policy, principles of humanity and environmental conservation.

The following are the rationale and justifications behind the limitations to patentability;

The limitations are justified for the protection of agriculture. Under section 13 agricultural products are non-patentable inventions and this is based on the argument that agricultural inventions should not be personalized or be subjected to stringent terms of use.

Uganda's economy is majorly based on agriculture as a source of income and employment for the people. Therefore, it is the governments' initiative not to allow private persons to dominate agricultural inventions at the expense of others.

Biological processes for production of plant and animal varieties are non-patentable due to the fact that they are in public interest in that masses need to access these processes to engage in production of food meant for the public.

A case in point is that of Havard Oncomouse (1990) OJ EPO proceedings before the EPO, the applicant claimed that a mouse or other non-human mammal, bred after being genetically manipulated to introduce abnormal sensitivity to carcinogenic substance and stimuli and it later became a significant tool in career research. This meant that it could not be patented because of the need by the public to put it to use.

In the case of **Commissioner of Patents v Havard College**[3], court refused the patentability of the same invention because it was contrary to public policy since the invention threatened the abnormal cycle of animals and caused great pain to them. This is a clear justification for the limitation and denial of patents of such nature.

[3] (2002) SCC 76

The exceptions and limitations are aimed at promoting thinking and inventions which leads to discoveries. Discoveries are the unearthing of causes, properties or phenomena already existing in nature. Invention is the application of such knowledge to the satisfaction of social needs. Discoveries are non-patentable because a discovery as such is not an invention.

In the case of **Young v Rosenthal**[4], there was an alleged infringement of a patent in the manufacture of corsets using a mathematical formula, court held that an invention of an idea or mathematical principle alone or anything of that sort could not be a subject of a patent. It must be a manufacture which is new in the realm.

The limitations to patentability are also aimed at protecting public morals in society. A patent which seeks to portray perverted messages like naked women and men cannot be registered by the registrar and it is therefore non-patentable under section 13 of the Act. In the case of **Glyn v Weston Feature Film**[5], court held that the work was not protected because it was immoral.

An invention that has to be claimed as a method of the human or animal body by surgery or therapy or of a diagnosis practiced on the human or animal body is non-patentable. The exclusion of this is to recognize the practitioners' freedom to treat his patients as he decides for its value to public health.

For instance, in Eisal's Application, the board decided that in addition to the exception for first medical use, it was legitimate to recognize claims to use of a substance for making up a medicament for pharmaceutical administration in pursuit of a subsequently discovered use of that substance, provided that the new treatment has been tried and tested. So this became the basis for the exclusion from patentability in the process for modifying the genetic identity of animals and those animals resulting from such processes.

Methods of performing a mental act are also non-patentable and the justification is stated in the Book of Aplin and Davis and this is that it is not apparent and clear .According to **Fujitsu Ltd Application (1996) RPC 511**, the justification is that such inventions are automated and are like computer programs.

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[4] (1884) 1 RPC 29,31

[5] Co [1916] 1 Ch.261

NO 4.

Creative industries refers to a range of economic activities which are concerned with the generation or exploitation of knowledge and information .These are industries which have their origin in individual creativity, skill and talent and which have potential for wealth and job creation through the generation and exploitation of intellectual property.

In 2010, the United Nations Conference on Trade and Development categorized the following activities as encompassing the creative industries; Graphic design, advertising, film and video, music, performing arts, fashion and jewelery, product and surface design, industrial design, new media, publishing, radio and television, visual art, architecture and crafts.

According to the creative economy report 2010 UNOTAD/UNDP, Global exports of creative goods and services, products such as arts and crafts , audio visuals, books, design work, films, music, new media, visual and performing arts and creative services more doubled between 2002 and 2008. The total value of these exports reached US$592 billion in 2008. According to UNESCO Report 2013, the creative economy is now one of the most rapidly growing sectors of the global economy.

The cultural and creative industries are key for social and economic development. In 2009 a first mapping exercise of cultural and creative industries undertaken by the UNESCO National Commission of Uganda showed that the cultural sector in the country fosters economic growth, job creation, export earnings and promotes social inclusion, cultural diversity and human resource development.

Promoting economic empowerment , as a result of intense campaign and awareness raising on 'Buy Uganda Build Uganda' the importance of hand craft production has been seen in upswing as the industry perceived as a potential business opportunity for sustainable income generation and attracting more and more artisans, traders and exporters.

The creative industries have greatly improved Uganda's economy. The trend in Uganda rotates around innovations and inventions. Intellectual property laws have been put in place to ensure that Uganda copes up with a highly innovative global economy.

Creative industries for example crafts are a source of income especially in the informal sector. They reduce on the level of poverty on the country and level of dependency. Crafts include tables, benches, stools among others. This craft industry has promoted the tourism industry especially traditional innovations that can qualify under geographical indications. For instance the traditional huts made from papyrus reeds common in western Uganda are good for tourism and they look appealing to tourists. The African prints such as the Masai traditional wear are widely sold across Africa and these are sources of income to the countries from which they originate.

Creative Industries help in generating the employment opportunities for the people in a country. This contributes to the overall well-being of communities thus inclusive and sustainable development.

A creative industry is helpful in a way that the government gets income in form of taxes from the industries which in turn is used by the government for the wellbeing of the people. These taxes are enforced under different taxation regimes like the Value Added Tax Act. The government also gains revenue from the registration of the creative industries. This is evident from the fees paid by these companies before being registered. It is this money that is used in the development of infrastructure like roads and hospitals which in turn helps people to improve their standards of living.

The creative media such as social media have also been an important aspect in trying to develop economies of African countries. These medias include; facebook, whatsapp, snapchat, tiktok among others. These have enhanced development in a way that they are platforms on which people market their products thereby attracting more customers both nationals and internationals and thus in turn brings in a lot of income which increases the Gross Domestic Product of the economies of countries.

These social media platforms are also taxed for example in Uganda where a tax called OTT that is Over the Top Tax; was introduced carrying a magnitude of 200ugshs on every user per day. This has widened the Uganda's tax base and in turn increasing the Gross Domestic Product of the country.

Creative industries like software applications have also had an impact on economic development of countries. These include; safe boda, Ubber, Bolt among others. These offer transport and delivery of both people and goods among other services. These have made transport so easy and cheap thereby facilitating trade. It is of no doubt that these soft ware applications have surely been of great importance to Uganda's economy and hence the growth of the Country's Gross Domestic Product

A creative industry helps the country to maximally utilize its natural resources. Uganda has local industries that have resorted to utilizing products which would otherwise not be utilized. Local industries like industries engaged in brewing beer, processing energy drinks and other health drinks like Kazaire utilize the local raw materials which would not be exported to the international market. Therefore, creative industries have utilized our local raw materials and thus contributing to the development of our country.

Graphic designs, advertising, film and video, music and performing arts are part of the entertainment industry, and these have promoted leisure and Ugandans have also invested in the same. This has fostered economic development. The government also goes ahead to levy taxes on these music and video productions thereby widening the tax base.

The occurrence of electricity which is part of creative industries has also greatly impacted the economic development of different countries. It is the creative industry of electricity which has fueled the growth of processing industries which largely use electricity to run the machines used in production. Examples are fruit processing industries, shoe making industries, food processing industries among others.

Creative industries help other industries to develop .For example, telephone companies and premium service providers also benefit from the soft ware industry. Other sectors such as banking and financial services rely on soft ware. Thus creative industries enable a constant development of all sectors.